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Submitter Information

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General Comment

I am a professional fine artist and illustrator and have maintained my career for the last 15 years by developing a distinct style and consistently producing high caliber work. While uploading hundreds of artworks to the internet via my website, social media platforms, and portfolio sites, I shared this work freely in order to build a sustaining audience as an independent artist. My aim was to connect with my potential audience, who would, in turn, support my artwork. I've eked a living since 2012 when I was able to go full-time with my art career. In those years since, I've garnered hundreds of thousands of followers, built a successful career, and was able to support myself and my daughter alone on sales of my paintings, commissions, freelance illustration gigs, and teaching. My ability to capitalize on my own artwork was key, making the sole decisions for how my art might be licensed or used meant I controlled my own market. In 2022, I learned that over 50 of my paintings, which I freely shared online, had been scraped into the LAION 5B database. Those artworks were unwittingly used as training data without my consent, without any offer of compensation, and without credit. I've also discovered that my name, Kelly McKernan, was encouraged as a style prompt, so that users of this software could emulate my style, something that could only be done by my artwork having been trained upon. I've observed my name used, again without my consent, over 12,000 times on Midjourney alone. These synthetic images, drawing data from my artwork, are ghosts of the artwork I've poured my soul into for over 15 years. To be utterly frank, I was horrified by this. The implications, I feared, were vast. Soon, AI images with my name are replacing my own authentic artwork in image searches. The life-sustaining gigs - a book cover for a self-publishing author, licensed artwork for album art for a small musician, commissioned artwork - have dried up in the span of a year since this technology has allowed the proliferation of synthetic images to compete with me in my own field. I can no longer pay my rent or support myself and my child on my career as an illustrator, as I feared may be my fate. I joined Karla Ortiz and Sarah Anderson in a class action lawsuit against Stability AI, Deviant Art, and Midjourney as I felt violated and stripped of my agency to have a say in how my art is used. I cannot believe that my name and my art can be used to support a 48 billion dollar industry while I have never given my permission for my work to be used in this way and I don't see a single cent. I am deeply, deeply concerned for the future of my profession. Not only are my peers facing the same dilemma of competing with knock-offs of their own artwork, but we're watching our jobs dry up as companies move to AI to save money. Why would any one of us continue to create and share our art for it to be scraped and used as training data against our will AND then used to essentially replace us? Where is the incentive to continue creating and contributing to the creative culture? Is it not the point of copyright to provide agency to the creator to control how their work is used, and be compensated for it? We recognize that the quality of the training data correlates to the quality of the output, and these products wouldn't be as successful as they are without the names and artwork of living, working artists today. This creative class must be protected from these unethical practices, or I fear human innovation will suffer in the name of generative AI. This summer - after many hopeless months of despair where I couldn't paint, I couldn't even sketch - I accepted a job as an adjunct professor of illustration at a nearby art college. I did this because I can't sustain myself and my daughter on my art alone anymore, but a secondary reason is one that's given me purpose when I've needed it most in the wake of this career-killing development: I worry for the next generation of artists. When I started art school almost 20 years ago, I dreamed of the career I ultimately built and sustained for over a decade. My current students worry that generative AI will replace them and their creative voices. What is the point of becoming an artist when our work will only be cannibalized and used against us? I don't know if I'll have a career left if nothing is done and if we don't win our lawsuit, I may give it up entirely. USCO, you are in a position to protect a creative class full of people just like me, who have worked their entire lives on their craft, found a way to make a living from it and support their families, and continue to innovate, inspire, and help humanity thrive and forge ahead. I want to be able to tell my freshman drawing students that there will still be a viable career path for them when they graduate, that one day, they can join a legacy of artists who have enjoyed generations of purposeful and fulfilling careers.

Attachments

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IMG_1132

IMG_1133